MASTER SERVICES AGREEMENT

This Master Services Agreement (this "Agreement") is entered into on September 23, 2021 by and between AES Clean Energy Development, LLC, a Delaware limited liability company ("Client"), and Burns & McDonnell Engineering Company, Inc., a Missouri Corporation having its registered office at 9400 Ward Parkway, Kansas City, Missouri ("Contractor") (each a "Party" and collectively the "Parties").

WHEREAS, Contractor provides environmental permitting consulting and professional engineering services and is willing to provide such services to Client and its affiliates on an as-requested basis per the terms described herein; and

WHEREAS, Client develops and owns renewable energy plants and is willing to engage Contractor as an independent contractor for Client under the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the foregoing and of the mutual covenants, conditions and considerations contained herein, the receipt and sufficiency of which is hereby acknowledged, and intending to be legally bound hereby, the Parties agree as follows:

1. Engagement. Client hereby engages Contractor to render, as an independent contractor, the services that may be designated from time to time in one or more Task Orders (as defined below) (the "Services"). Contractor hereby accepts the engagement to provide such Services to Client on the terms and conditions set forth herein and in the applicable, mutually agreed upon, and fully executed Task Order(s). Contractor will furnish all necessary resources to provide the Services. Client may terminate this Agreement and/or one or more Task Orders covered by this Agreement immediately and without notice for any noncompliance with applicable safety procedures set forth in Section 7 or the compliance obligations set forth in Sections 14 and 15.

2. Services. Each scope of services contracted hereunder shall be defined in an individual written purchase order, service order, task order, work order or other written document (each, a "Task Order"), which shall be subject to the terms and conditions set forth herein and shall become a part of this Agreement as if originally attached hereto. For each Task Order to be paid on a time and materials basis, if applicable, the Task Order must set forth the billing rates for all personnel who will be performing Services, the reimbursement rates (if applicable) and proposals for the time and material which will be required for the task, with such time and materials being approved by Client prior to the expenditure or consumption of such time or materials. Any change to the proposed time and materials specified in a Task Order shall be pre-approved by Client in writing. Client may, at any time, by written notice to Contractor, change the Services to be performed under this Agreement or any individual Task Order. If any such change causes an increase or decrease in Contractor's cost of, or time required for, performance of the Services, the Parties shall agree upon an equitable cost and/or completion time adjustment. A form Task Order is attached to this Agreement as Exhibit A. If the terms of any Task Order conflict with the terms of this Agreement, the terms of this Agreement shall prevail and be controlling. Any scope-specific terms and conditions shall be defined in the applicable Task Order. Each Task Order must be signed by a duly authorized representative of both Parties and must specify the project or projects for which Services will be performed.

3. Term and Termination. This Agreement shall begin as of the date of the Agreement and shall remain in force until terminated in accordance with the terms of this Agreement. Client shall have the right to terminate this Agreement or any Task Order for convenience upon thirty (30) days' written notice to Contractor. If Contractor materially breaches any term of this Agreement, Client

shall have the right to immediately terminate this Agreement. In the event of a termination of this Agreement or any Task Order, Client shall pay Contractor for all Services rendered up to the day notice of termination of this Agreement or any Task Order is submitted from Client. Termination of any Task Order shall not terminate or amend any other Task Order or this Agreement. A termination of this Agreement shall terminate all Task Orders. The obligations in Section 4 (Compensation), Section 5 (Confidential Information), Section 6 (Representations), Section 10 (No Transfer of Intellectual Property), Section 13 (Indemnification), Section 15 (AES Corporate Compliance Terms and Conditions), Section 16 (Notices), Section 17 (Attorney's Fees), Section 26 (Taxes), Section 27 (Governing Law), Section 28 (Dispute Resolution) and Section 32 (Limitation of Liability) shall survive the termination of this Agreement.

4. Compensation. In consideration of the Services performed by Contractor, Client agrees to pay Contractor the fees defined in the respective Task Order (the "Fees"). Client agrees to reimburse Contractor for actual expenses incurred (without any markup), but only to the extent that such expenses are incurred at Client's request and preapproved in writing by Client ("Out-of-Pocket Expenses"). Under no circumstances will Client be responsible for Contractor's office overhead, costs of doing business, costs related to communications, normal and routine expenses, or for any equipment used by Contractor, unless such equipment will be used exclusively in performing the Services for Client, has been preapproved in writing by Client, and title to such equipment is transferred to Client upon completion of the Services, if so requested by Client. Client's sole financial obligation under this Agreement and all Task Orders shall be to pay undisputed Fees and Out-of-Pocket Expenses. Contractor shall submit to Client at accountspayableACE@aes.com, Attention: Accounts Payable no more frequently than once per month, unless otherwise provided in a Task Order, an invoice specifying the Fees together with a statement identifying in reasonable detail all Out-of-Pocket Expenses incurred during the previous month, together with the related receipts for all such Out-of-Pocket Expenses. Client shall make payment to Contractor for all undisputed Fees and Out-of-Pocket Expenses per instructions included in the applicable Task Order no later than thirty (30) days following the date of receipt of such invoice. If Client fails to pay undisputed amounts owed to Contractor within thirty (30) days after receipt of an invoice, Contractor shall be entitled to the payment of interest at the lower of (i) 1.5% per month or (ii) the then applicable short term Applicable Federal Rate as published by the Internal Revenue Service, on all such unpaid amounts.

5. Confidential Information. A) Contractor understands that while rendering the Services to Client, Contractor may have access to reports, memoranda, notes, information, records, maps, research results, business projections, business and research notebooks, data, formulae, inventions and processes of Client and its affiliates (excluding trade secrets) that may or may not be identified as being "Confidential" at the option of Client. If Client fails to so identify such information as being "Confidential", Contractor shall treat as confidential, any information that a reasonable person knows or should understand to be confidential from the nature of the information and circumstances of disclosure (collectively, "Confidential Information").

   B) Contractor agrees to hold all Confidential Information in confidence, and not to disclose Confidential Information to any third party without the express prior written consent of Client. Contractor shall not copy any Confidential Information, except to the extent reasonably determined necessary by Contractor to carry out its responsibilities to perform the Services. Upon written request by Client, Contractor shall either return all copies of Confidential Information to Client, or in the alternative, securely destroy all copies of Confidential Information; except for one archival copy, which shall be held in accordance with the terms of this Agreement. Upon written request of Client, Contractor shall certify, in writing, the return and/or destruction of all Confidential Information. The obligations of Contractor under this Section shall survive for one years following

the date of termination or expiration of this Agreement. Such Confidential Information shall not be disclosed to anyone except employees or Subcontractors (as defined below) of Contractor who Contractor reasonably determines have a need to know the Confidential Information and who have been notified of the terms of this Agreement and agreed to keep such information confidential in accordance with the terms of this Agreement. Contractor will be responsible to Client for any breach of this Section 5 by its employees or Subcontractors.

C) Confidential Information shall not include: (1) information that is in the public domain at the time of disclosure; (2) information that becomes publicly known through no wrongful act of Contractor; (3) information that is or becomes known to the Contractor from a third party without a similar confidentiality obligation and without breach of this Agreement; or (4) information that the Contractor or its representatives develop independently without use of or reference to Confidential Information.

D) If Contractor is required by law or regulation or a government body with jurisdiction over the Contractor, or through a legal process to which the Contractor is subject, to disclose any Confidential Information to a third party, the Contractor shall promptly, and to the extent practicable prior to any disclosure, notify Client of such request or requirement so that Client may seek to prevent the disclosure. Contractor shall also, at Client's expense, cooperate in contesting such a disclosure. If Contractor is legally compelled to make a disclosure, Contractor shall disclose only that portion of the Confidential Information that it is legally required to disclose and only to those persons or entities to which it is legally required to make the disclosure.

6. Representations. Contractor represents (a) that Contractor is not aware of any obligations, legal or otherwise, of Contractor inconsistent with the terms of this Agreement or with Contractor's undertaking a relationship with Client and (b) that the performance of the Services contemplated by this Agreement do not violate any applicable law, rule or regulation or any proprietary right of any third party.

7. Covenants. Contractor agree that at all times during the performance of its obligations under this Agreement that (a) that the standard of care applicable to Contractor's Services will be the degree of skill and diligence normally employed by the professional engineers or consultants performing the same or similar Services at the time and in the jurisdiction in which said Services are performed and it will perform the Services in a professional and workmanlike manner ("Standard of Care"); (b) to the extent that any of the Services are to be rendered by a professional licensed under one or more governing bodies, such Services shall, in addition to the other standards set forth herein, meet all standards of service applicable to such licensed individuals and the services provided by, through or under such license(s); and (c) it will implement and adhere to safety procedures necessary to comply with any applicable law or regulation. If Client notifies Contractor in writing that the Services performed under this Agreement do not comply with the requirements of the foregoing Standard of Care within twelve (12) months following completion of the Services, Contractor will diligently take all necessary measures, at its sole expense, to re-perform all defective work and cause the work to comply with the requirements of this Agreement and the respective Task Order(s). This obligation to re-perform the Services is Contractor's sole obligation and Client's sole and exclusive remedy with respect to defects in the quality of the Services.

   Contractor further acknowledges that maintaining good relations with the local community and other service providers is critically important to Client's business and agrees to perform the Services with due concern to maintaining good relations between Client and such third parties, including complying with the obligations set forth in Sections 14 and 15. If any of the Services are

to be rendered on a project site controlled by Client or Client's subcontractor, then Contractor, its employees, and its Subcontractors shall comply with all applicable Client or Client subcontractor safety and security policies when accessing such site(s), including Client's substance abuse policy, which are hereby incorporated by reference. Client reserves the right to impose other safety or security requirements when Contractor accesses any site controlled by Client or Client's subcontractor as Client may, from time to time, deem necessary; *provided*, that Client shall inform Contractor in advance of the implementation of such other safety or security requirements. Contractor shall not be responsible for Client's: (a) construction means, methods, techniques, sequences, procedures, or safety precautions and programs in connection with work related to the Work (a) the failure of any of Client's other contractors or consultants or their respective employees, subcontractors, vendors, or other project participants, not under contract to Contractor, to fulfill contractual responsibilities to Client or to comply with federal, state, or local laws, regulations, and codes; or (b) procuring permits, certificates, and licenses required for any construction. Contractor shall not have the authority to direct, control of or stop the work of Client's contractors or consultants or their respective employees, subcontractors or vendors.

8. Liens. To the extent Contractor has received timely payment from Client as required hereunder, Contractor will not allow liens to be placed on any Client property for claims of nonpayment by Contractor or its Subcontractors and Contractor will immediately satisfy or transfer to bond any lien placed in violation of this paragraph. If Contractor fails to immediately fulfill its obligations under this Section, Client may remove the lien and offset any amounts expended in so doing against any amount owed to Contractor under this Agreement, or otherwise seek reimbursement from Contractor. Contractor will not allow any liens or pre-lien notices to be placed on any property which is not owned by Client.

9. Subcontractors. Contractor may subcontract its performance of the Services to one or more third-party subcontractors, agents, representatives, consultants, or vendors (each, a "Subcontractor"). Notwithstanding the foregoing, Contractor must identify all Subcontractors to Client, and Client must provide written approval for all Subcontractors prior to any Subcontractor performing any work related to the Services. Client may, at any time, require Contractor to replace any Subcontractor if Client becomes dissatisfied, on a reasonable basis, with such Subcontractor's performance. Contractor shall require all Subcontractors to furnish their own safety equipment. Contractor shall require its Subcontractors, prior to the performance of any Service, to agree in writing to be bound to the confidentiality, proprietary rights provisions, compliance with Sections 14 and 15 of this Agreement, and Client's safety and security policies as set forth in this Agreement. Contractor shall use commercially reasonable efforts to contractually require Subcontractors to carry liability insurance (auto, commercial general liability and excess) and workers' compensation/employer's liability insurance commensurate with their respective scopes of work. Notwithstanding the foregoing, Contractor shall be fully responsible to Client for any Service performed by Subcontractors to the same extent as if such Service were performed by Contractor.

10. No Transfer of Intellectual Property. All deliverables first prepared and required to be delivered under a Task Order as part of the performance of the Services (the "Work Product") shall be the property of Client upon Contractor's receipt of payment for the Services under this Agreement; and any of Client's intellectual property received or utilized as part of the Services or deliverables may not be used by Contractor for any purpose other than fulfilling its obligations under this Agreement. Contractor agrees to execute, on behalf of it and its Subcontractors and without further consideration, any assignment or other document that may be necessary to establish Client's ownership of such Work Product. Any and all deliverables are specifically prepared and intended to be utilized exclusively for the project and location contemplated under the applicable Task Order. Any completion, extension, or modification by Client or others without participation

by Contractor, or written authorization by Contractor, or any reuse by Client of Contractor's deliverables other than for the specific purpose intended will be at Client's sole risk and without liability or legal exposure to Contractor. Client shall defend, indemnify, and hold harmless Contractor, its directors, officers, employees, agents and subcontractors and their respective directors, officers, employees and agents against any and all claims, losses, damages, injuries and expenses, including attorneys' fees, arising out of or resulting from such reuse. Contractor shall, at all times, retain ownership of Contractor's intellectual property (including standard drawings and specifications, computer programs and models, copyrights, trade secrets, patented, patent pending, or other patentable technology, processes, or business practices). Contractor hereby grants to Client an irrevocable, non-exclusive, royalty-free license to utilize Contractor's intellectual property incorporated into the Work Product to the extent necessary for the construction, operation, maintenance, or repair of the Project for which it was prepared and intended.

11. The Work Product shall not infringe upon any patent, copyright, or other proprietary right of any third-party. Contractor agrees to indemnify and hold harmless Client, at its expense, for any losses, damages, injuries and expenses arising out of or resulting from any Service or related Work Product that infringes on any patent, copyright, or other proprietary right of a third-party and will pay all costs and damages, including attorneys' fees, finally awarded against Client in such claim to the extent such loss is related to Contractor's performance of Services under this Agreement. If, in any action hereunder, the Work Product is held to infringe on any patent or other proprietary rights of any third-party or Client's use of the Work Product is enjoined, Contractor shall, at its sole expense: (i) procure for Client the rights to continue using said Work Product; or (ii) modify or replace it so that it is non-infringing but still complies with the requirements of this Agreement.

12. Insurance. At all times during the term of this Agreement, Contractor shall provide, pay for and maintain the following insurance coverages with a reputable insurer reasonably acceptable to Client:

a. Workers Compensation and Occupational Disease Insurance as required by applicable law;

b. Employer's Liability Insurance in the amount of One Million Dollars ($1,000,000) per accident, One Million Dollars ($1,000,000) per disease – policy limit and One Million Dollars ($1,000,000) per disease - each employee with Broad Form All States Endorsement and, if applicable, the U.S. Longshoremen's and Harbor Workers Compensation and Jones Act endorsement;

c. Automobile Liability insurance for owned, non-owned, and hired vehicles in the amount of One Million Dollars ($1,000,000) per accident;

d. Commercial General Liability ("CGL") with limits of One Million Dollars ($1,000,000) each occurrence and Two Million Dollars ($2,000,000) general and products-completed operations aggregate. Coverage shall be on an "occurrence" basis using Insurance Services Office Form CG 00 01 or equivalent form under an ISO filing in the state of Missouri for an architect and engineering firm within Contractor's industry including coverage for liability caused by premises operations, independent contractors, products-completed operations, personal and advertising injury and contractual. Further, the insurance shall not exclude coverage for the hazards of explosion, collapse or underground property damage, commonly referred to as "XCU". Contractor shall procure, or use commercially reasonable efforts to contractually require its prime contractor performing the Work at the Facility to maintain Products-completed operations coverage for a period of two (2) years after completion of the Work.

e. Professional Liability Insurance (errors and omissions) with a limit of one Million Dollars ($1,000,000) each claim and in the aggregate. The retroactive date shall precede the date of Work and continuous coverage shall be maintained during the life of the Agreement and for two (2) years after completion of the Work.

f. Umbrella/Excess Liability Insurance coverage of three Million Dollars ($3,000,000) per occurrence and in the aggregate.

g. (Intentionally deleted).

h. Umbrella or Excess. Umbrella or Excess Liability insurance policy(ies) may be used in combination with primary policies to satisfy the limit requirements set forth in the Agreement for Employer's Liability, Commercial General Liability, and Business Automobile Liability Insurance. Such Umbrella or Excess Liability policy(ies) shall apply without any gaps in the limits of coverage and be as broad as and follow the form of the underlying primary coverage provided.

13. Insurance Covenants.

a. Acceptable Insurers. All insurance required under the Agreement shall be provided by authorized insurers qualified to do business in the state in which Work shall be completed with a rating of no less than A-:VII from A.M. Best, or equivalent rating from another nationally recognized rating agency Client reserves the right to reject any insurance carrier(s) with an unacceptable financial rating. Self-insured retentions and deductibles are the sole responsibility of Contractor and will not be borne in any way by the Client.

b. Additional Insured. Except for Workers' Compensation, Employer's Liability, and Professional Liability, all the policies required by the Agreement shall include Client and its affiliates and its and their respective officers, directors, shareholders, members, affiliates, and employees ("Client Indemnitees") as additional insureds to the extent of the insurance limits specified herein and to the extent that third party bodily injury or third-party property damage is caused by negligence of Contractor.

c. Primary and non-contributory. Contractor's insurance coverage providing additional insured coverage shall be primary insurance to the extent that third party bodily injury or third-party property damage is caused by the negligence of Contractor and any insurance or self-insurance, carried by the Client and Client Indemnitees shall be excess and shall not contribute with it.

d. Waiver of Subrogation. Except for Professional Errors and Omissions, Employer's Liability and Worker's Compensation, all the policies required by the Agreement shall provide for a waiver of the underwriter's right to subrogation against Client and Client Indemnitees, and evidence of waiver shall be provided to Client.

e. Separation of Insured. All policies required under the Agreement, except for Workers' Compensation, Employer's Liability, and Professional Errors and Omissions, shall apply separately to each insured against whom claim is made or suit is brought subject to the policy limit of liability and shall not contain any cross suits exclusion.

f. Evidence of Insurance. Prior to commencing any work, and thereafter upon Client's request and upon each renewal of insurance during the term of the Agreement, Contractor shall

provide documentary evidence in the form of certificates of insurance, evidencing, to Client's reasonable satisfaction, that the required insurance coverages have been obtained. All certificates shall be executed by a duly authorized representative of each insurer or Contractor's broker/agent.

g. Maintenance of Insurance. Maintenance of required insurance is an essential obligation of Contractor under the terms of the Agreement. Contractor's failure to provide satisfactory evidence of insurance shall be deemed a material breach of the Agreement. Contractor's lack of insurance does not negate Contractor's obligations under the Agreement, and this may not in any event be used by Contractor for an adjustment to contract price or schedule.

h. Notice of Cancellation. The policies shall provide Client with notice of any cancellation of any required insurance policies thirty (30) prior to any such cancellation.

i. No Representation. Client does not represent that the coverage types or amounts of insurance required by this Agreement are adequate to protect Contractor against all potential losses Contractor may incur. Contractor shall determine the amount and/or additional types of insurance it deems necessary to adequately protect itself. Any additional insurance that Contractor deems necessary shall be purchased at its sole cost.

j. Client and Contractor waive all rights of recovery and subrogation against each other and their officers, directors, agents, or employees for damage covered by property insurance (including deductibles) during and after the completion of Contractor's Services. If the Services result in a construction phase, Client shall ensure that Contractor is an additional insured and is provided a waiver of subrogation in their favor on any Builder's Risk insurance procured on a project on which Contractor is providing Services whether or not such insurance is procured by Client or its construction contractors.

14. Indemnification. Contractor agrees to indemnify and hold harmless Client, its affiliates and its and their respective officers, directors, shareholders, members, affiliates, independent contractors, and employees for any claims, losses, damages, injuries and expenses incurred by a third-party (including reasonable attorneys' fees) arising out of or resulting from bodily injury, death or damage to third-party property to the extent caused by Contractor's intentional misconduct or negligent acts or omissions or its Subcontractors in the performance of its obligations under this Agreement. Client and Contractor shall mitigate damages hereunder.

15. Compliance with Federal Non-Discrimination Laws**.** Contractor and all Subcontractors shall comply with the following laws and corresponding regulations, as applicable:

a. Executive Order 11246, as amended (Equal Opportunity Clause);

b. Executive Order 13496, as amended (Notice of employee rights under federal labor laws; 29 CFR Part 471, Appendix A to Subpart A);

c. 29 U.S.C. 793 (Employment of Workers with Disabilities; 41 CFR 60-741.5(a)) (prohibiting discrimination against qualified individuals on the basis of disability and requiring affirmative action by covered prime contractors and subcontractors to employ and advance in employment qualified individuals with disabilities);

d. 38 U.S.C. 4212 (Disabled Veterans and Vietnam Veterans Provisions; 41 CFR 60-250.5(a) and 60-300.5(a)) (prohibiting discrimination against qualified protected veterans and requiring affirmative action by covered prime contractors and subcontractors to employ and advance in employment qualified protected veterans.); and

e. 15 U.S.C. 637 (Small Business Concerns and Small Minority Business Provisions).

Additionally, Contractor shall comply with all applicable federal, state, and local laws and regulations, which are incorporated herein by reference.

16. AES Corporate Compliance Terms and Conditions:

a. Contractor shall comply fully with all applicable laws of the countries in which the obligations set forth in this Agreement shall be performed, as well as the applicable anti-corruption, anti-money laundering, anti-terrorism and economic sanction, and anti-boycott laws of the United States including, without limitation, the United States Foreign Corrupt Practices Act ("Applicable Laws and Regulations").

b. Contractor represents and warrants that it is not a government entity and that it does not currently employ, and will not in the future, without the prior written consent of Client, employ, either directly or indirectly, a Government Official, or a parent, spouse, child or sibling of a Government Official who shall perform services pursuant to this Agreement. For purposes herein, "Government Official" shall mean any officer or employee of a government, or department (whether executive, legislative, judicial or administrative), agency or instrumentality of such government, including any government-owned business, or a public international organization; or any person acting in an official capacity for or on behalf of such government, or any candidate for public office or representative of a political party.

c. Contractor represents and warrants that it has not, and that it has no evidence of any kind that any of its owners, controlling shareholders, directors, officers, employees or any other person working on its behalf (including, without limitation any of its subsidiaries, affiliates, subcontractors, consultants, representatives or agents) has, either directly or indirectly:

i. Made a Prohibited Payment, with respect to the project or projects for which Services will be performed. "Prohibited Payment" is defined to include any offer, gift, payment, promise to pay, or authorization of the payment of any money or anything of value, directly or indirectly, to a Government Official, including for the use or benefit of any other person or entity, to the extent that one knows or has reasonable grounds for believing that all or a portion of the money or thing of value which was given or is to be given to such other person or entity, will be paid, offered, promised, given or authorized to be paid by such other person or entity, directly or indirectly, to a Government Official, for the purpose of either (i) influencing any act or decision of the Government Official in his official capacity; (ii) inducing the Government Official to do or omit to do any act in violation of his lawful duty; (iii) securing any improper advantage; or (iv) inducing the Government Official to use his influence with a non-U.S. government or instrumentality thereof to affect or influence any act or decision of such government or instrumentality, in order to assist in obtaining or retaining business or in directing business to any party.

ii. Engaged in a Prohibited Transaction with respect to the Services. "Prohibited Transaction" is defined to include:

1. Receiving, transferring, transporting, retaining, using, structuring, diverting, or hiding the proceeds of any criminal activity whatsoever, including drug trafficking, fraud, and bribery of a Government Official;

2. Engaging or becoming involved in, financing, or supporting financially or otherwise, sponsoring, facilitating, or giving aid to any terrorist person, activity, or organization; or

3. Participating in any transaction or otherwise conducting business with a "designated person," namely a person or entity that appears on any list issued by the United States or the United Nations with respect to money laundering, terrorism financing, drug trafficking, or economic or arms embargoes (a "Designated Person").

d. Contractor will not, and shall take all reasonable steps to ensure that none of its owners, controlling shareholders, directors, officers, employees, and other persons working for it with respect to the Services (including, without limitation, its subsidiaries and affiliates, subcontractors, consultants, representatives, and agents), directly or indirectly, make, promise or authorize the making, of a Prohibited Payment or engage in a Prohibited Transaction in connection with the Services.

e. Contractor shall promptly report to Client any Prohibited Payment or Prohibited Transaction of which it obtains knowledge, or has reasonable grounds to believe occurred, in respect of the Services.

f. Contractor agrees that, if Client has any reasonable grounds to believe that a Prohibited Payment has been made, promised or authorized, directly or indirectly, to a Government Official in connection with the Services, or that a Prohibited Transaction has taken place in connection with the Services, it shall cooperate in good faith with Client in determining whether such a violation occurred by engaging an independent third party to investigate the matter and to provide a written report of its findings to Client and Contractor.

g. Contractor has not and will not, either directly or indirectly, share or promise to share its fees or any other funds it receives from Client or in respect of the Services with any Government Official.

h. Contractor acknowledges receipt of a copy of the AES Code of Business Conduct and Ethics and agrees, if it does not already have its own Code of Business Conduct and Ethics, to establish and implement an effective code of business conduct and ethics.

i. Contractor shall perform due diligence, as it deems warranted by the circumstances, on the reputation of any subcontractors, consultants, agents, or representatives it employs in the performance of the Services.

j. All requests for payment submitted by Contractor to Client shall be accompanied by detailed and accurate invoices that describe with specificity the Services for which the payment is requested. All such requests for payment shall be commensurate with the fair market value for such Services.

k. If applicable, Contractor agrees that it shall be reimbursed by Client only for reasonable lodging, meals, travel and other expenses for its employees or for such expenses incurred on behalf of third parties when supported by actual, accurate and reasonably detailed third-party invoices. Where Government Officials are involved, the request for reimbursement shall be accompanied by a written statement of the details of the expenses and an explanation of the purpose of the expenses, the reason that the participation of such officials was necessary, and the names of those in attendance and their employment or business affiliation.

l. For the purpose of detecting potential violations of Applicable Laws and Regulations, Contractor shall perform periodic internal or independent audits, in accordance with its usual business practices, of (a) its respective financial books, accounts and records and (b) the origin of the funds and the source of assets sent by Contractor to Client in connection with the Services.

m. In the event that the scope of any Task Order requires Contractor to interface or communicate with any Government Official in the course of performance of the Services, Contractor shall coordinate with Client to ensure that a Client representative is present for all such oral communications and copied on all such written communication.

17. Notices. All notices under this Agreement shall be deemed to have been duly given upon the mailing of the notice by (i) reputable overnight carrier with delivery confirmation, (ii) first class mail with postage prepaid return receipt requested, (iii) courier service with electronic delivery confirmation and receipt signature, or (iv) upon the facsimile or email transmission (provided that a physical copy is post marked within twenty four (24) hours of such facsimile or email transmission), to the Party(s) entitled to such notice at the address set forth below. A Party may change its address by providing notice of same to the other Party in accordance with this Section.

If to Contractor:	Burns & McDonnell 9400 Ward Parkway, Kansas City, Missouri Attention: Legal Department
If to Client:	AES Clean Energy Development, LLC 2180 South 1300 East Suite 600 Salt Lake City, UT 84106 Attn: Legal Department
with a copy to:	AES Clean Energy Development, LLC 282 Century Place, Suite 2000 Louisville, CO 80027 Attention: Legal Department Email: ACEDLegalNotices@aes.com

18. Attorney's Fees. Should either Party, or any successor or assign of either Party hereto, resort to litigation to enforce this Agreement, the Party prevailing in such litigation shall be entitled, in addition to such other relief as may be granted, to recover its reasonable attorneys' fees and costs

in such litigation from the other Party.

19. Entire Agreement. This Agreement contains the entire understanding between the Parties hereto and supersedes any prior written or oral agreements, representations or warranties between the Parties respecting the subject matter hereof.

20. Amendment. This Agreement may be amended only in writing signed by a duly authorized representative of both Parties.

21. Severability. If any term, provision, covenant or condition of this Agreement, or the application thereof to any person, place or circumstance, shall be held by a court of competent jurisdiction to be invalid, unenforceable or void, the remainder of this Agreement and such term, provision, covenant or condition as applied to other persons, places and circumstances shall remain in full force and effect.

22. Remedies. Unless expressly stated otherwise in this Agreement, the rights and remedies provided by this Agreement are cumulative, and the exercise of any right or remedy by either Party (or by its successors) shall not preclude or waive its right to exercise any or all other rights and remedies.

23. Nonwaiver. No failure or neglect of either Party in any instance to exercise any right, power or privilege hereunder or under law shall constitute a waiver of any other right, power or privilege or of the same right, power or privilege in any other instance. All waivers by either Party must be contained in a written instrument signed by the Party to be charged.

24. Assignment. The rights and obligations of Contractor under this Agreement may not be assigned by Contractor without Client's prior written consent. Client may assign its interests hereunder in whole or in part, or with respect to any particular Task Order, to one or more of its affiliates without the consent of Contractor. In addition, Client may assign this Agreement, in whole or in part, to any lender or equity investor providing financing in respect of a project owned by Client or any of its affiliates without the consent of Contractor, however any such assignment to a lender or equity investor shall not release Client from its obligations under this Agreement. Contractor agrees to provide cooperation with respect to any such financing, including executing necessary consents upon standard market terms.

25. Independent Contractor. This Agreement does not constitute a partnership or joint venture relationship by and between the parties and shall not be construed so as to create any such relationship. The relationship between Contractor and Client is that of an independent contractor. This Agreement is not authority for Contractor to act for Client as its agent including incurring any obligations or liabilities on behalf of Client. Contractor shall not use Client's name or any information about a Client project for which Services are provided for any purpose, including in any of its marketing or publicity materials, without the written consent of Client.

26. Account Records and Retention. Contractor shall maintain all records (i) necessary to support payment of the Fees or any Out-of-Pocket Expenses and (ii) relating to Services performed (collectively, the "Service and Fee Records"). All such Service and Fee Records shall be maintained for at least three years following final payment by Client. Upon reasonable notice, such Service and Fee Records shall be available for review by Client or its agents or representatives. Notwithstanding anything to the contrary herein, in no event shall Client be entitled to audit the composition of any agreed upon fixed rates or percentage multipliers nor shall it be entitled to audit any rates, charges, costs, hours worked or expenses related to work performed on a lump sum or fixed price basis.

27. Taxes. Contractor agrees to pay all appropriate local, state and federal taxes arising in connection with performance of its obligations under this Agreement.

28. Governing Law. This Agreement shall be construed in accordance with, and all actions arising hereunder shall be governed by, the laws of the State of New York, without regards to the conflict of laws provisions thereof.

29. Dispute Resolution. All disputes and claims arising from this Agreement shall be litigated in federal or state courts having jurisdiction over the subject matter of the litigation in the courts of the State of Arizona. The Parties hereby consent to the exclusive jurisdiction of the state and Federal courts situated in the State of New York.

30. Non-Exclusive Arrangement. Contractor acknowledges and agrees that this Agreement does not provide for an exclusive arrangement for the provisions of Services described herein by Contractor and that Client is entitled at any time, without violating any term or condition of this Agreement, to procure similar services from any third-party.

31. Conflicts of Interest. Contractor shall not perform, or enter into any agreement to perform, services for any other person, corporation, or entity, except with the prior written consent of Client, if the performance of such services could result in a conflict with Contractor's obligations under this Agreement.

32. Limitation of Liability. In no event shall Contractor or its subcontractors or subconsultants, of any tier, be liable in contract, tort, strict liability, warranty or otherwise, for any special, incidental, exemplary or consequential damages, such as, but not limited to, delay, disruption, loss of product, loss of anticipated profits or revenue, loss of use of the equipment or system, non-operation or increased expense of operation of other equipment or systems, cost of capital, or cost of purchase or replacement equipment, systems or power. In addition, to the fullest extent permissible by law, and notwithstanding any other provision of this Agreement or any Task Order, except in instances of Contractor's gross negligence, illegal acts or intentional misconduct, the total liability, in the aggregate, of Contractor, its officers, directors, shareholders, employees, agents, subcontractors and subconsultants, and any of them, to Client and anyone claiming by, through or under Client, for any and all claims, losses, liabilities, costs or damages whatsoever arising out of, resulting from or in any way related to the Services or this Agreement or any Task Order from any claim, including, but not limited to, tort claims, claims of negligence (of any degree), professional errors or omissions, breach of contract, breach of warranty, indemnity claims and strict liability of Contractor, its officers, directors, shareholders, employees, agents, subcontractors and subconsultants, and any of them, shall not exceed the amounts set forth below:

Dollar Value of Services (as determined on a per project basis)	Limit of Liability
Up to $750,000	One- and one-half times (1.5x) the total compensation actually received by Contractor for the project pursuant to this Agreement.
$750,001 and above	$3,000,000

For the purposes of this Section 32, the Dollar Value of Services shall be calculated on a per project basis, such that the value of all Task Orders associated with a particularly renewable energy project

or facility shall be added together cumulatively.

(remainder of this page left intentionally blank)

The Parties have caused their duly authorized representatives to execute this Agreement on their behalf as of the date first written above.

AES CLEAN ENERGY DEVELOPMENT, LLC

By: _____
Name: Arlo Corwin
Title: VP Development

BURNS & MCDONNELL ENGINEERING COMPANY, INC.

By: _____
Name: Woody McOmber
Title: Vice President

EXHIBIT A

TASK ORDER __

This Task Order ("Task Order") is executed this __ day of _____, 202__ pursuant to the Master Services Agreement ("Agreement") dated _____, 202__ by and between _____ ("Contractor") and AES Clean Energy Development, LLC, a Delaware limited liability company ("Client") (each a "Party" and collectively the "Parties").

[In accordance with Section 24 of the Agreement, Client is permitted to assign its rights to this Task Order to its affiliated entity [PROJECT COMPANY/ACE DEVELOPMENT COMPANY, LLC]. By its execution of this Task Order, Client assigns all right, title, benefit, interest in and obligation under the Agreement to the extent applicable to this Task Order to [PROJECT COMPANY/ACE DEVELOPMENT COMPANY, LLC] (the "Assigned Assets"). By execution of this Task Order, [PROJECT COMPANY/ACE DEVELOPMENT COMPANY, LLC] hereby accepts assignment of the Assigned Assets and assumes all rights, duties, obligations and liabilities under the Assigned Assets agrees that the terms of the Agreement will govern all rights and obligations of Contractor to [PROJECT COMPANY/ACE DEVELOPMENT COMPANY, LLC] with regard to this Task Order. By execution of this Task Order, Contractor hereby consents to the assignment of the Assigned Assets to [PROJECT COMPANY/ACE DEVELOPMENT COMPANY, LLC], and irrevocably releases Client from all present or future duties, obligations or liabilities under the Agreement as applicable to this Task Order. As applicable to this Task Order only, all references to Client in the Agreement will refer to [PROJECT COMPANY/ACE DEVELOPMENT COMPANY, LLC].]

The Parties hereby agree that this Task Order shall be subject to the Agreement and the terms and conditions thereof.

1. Scope of Services. Contractor will provide the Services set forth in the proposal for [_____] dated [_____], a copy of which is attached to this Task Order as Exhibit A (the "Proposal").
2. Schedule. [Contractor will provide the Services in accordance with the schedule set forth in the attached Proposal.]
3. Compensation. [Must specify whether Services will be billed as time and materials with an amount not to exceed or hourly rate. If hourly rate, must provide names of people performing work and their hourly billing rate as well as an estimate of the totals hours necessary to complete the Services and total cost of Services.]
4. Payment Instructions. Payment for the Services shall be paid according to the following instructions and the payment terms of the Agreement:_____
5. Assignment. Client may assign its interests under this Task Order in whole or in part to one or more of its affiliates without the consent of Contractor. In addition, Client may assign this Task Order, in whole or in part, to any lender or equity investor providing financing in respect of a project owned by Client or any of its affiliates without the consent of Contractor, however any such assignment to a lender or equity investor shall not release Client from its obligations under this Task Order.
6. [Required Safety Procedures. If on-site, Contractor will adhere to AES Clean Energy Development Company, LLC Code of Safe Practices, a copy of which is attached to this Task Order as Exhibit B. The terms of the COVID-19 Code of Conduct signed by the Parties on [_____] will apply to this Task Order.]

The Parties hereto have caused their duly authorized representatives to execute this Task Order on their behalf as of the date first written above.

AES CLEAN ENERGY DEVELOPMENT, LLC

By: _____
Name: _____
Title: _____

[CONTRACTOR]

By: _____
Name: _____
Title:_____

[PROJECT COMPANY/ACE DEVELOPMENT COMPANY, LLC]

By: _____
Name: _____
Title: _____